

REVISED RESOLUTION DECLARING EQUITY FEE REDUCTION
FOR PLANNING AND ENGINEERING DEVELOPMENT REVIEW FEES FOR CERTAIN
APPLICATION TYPES THAT ACHIEVE COMMUNITY BENEFITS

WHEREAS, the Larimer County Land Use Code contains the review processes and standards for different development types; and

WHEREAS, Larimer County charges a combined Planning and Engineering Development Review fee to applicants at the time of a development review application as outlined in a Fee Schedule; and

WHEREAS, in 2022, after a thorough study of the time it takes to do development review and assessing comparable services and costs in other communities, Larimer County adopted a new Planning and Engineering Development Review Fee Schedule that took effect on January 3, 2023; and

WHEREAS, for many application types, the application costs have increased and may be harder to bear for certain smaller projects that may be providing a community benefit as noted below; and

WHEREAS, Larimer County's Comprehensive Plan, Strategic Plan Objectives, and Climate and Sustainability Plan define community goals related to affordable and attainable workforce housing and different housing types, affordable and accessible childcare facilities, energy efficiency and water conservation, and supporting small business startups; and

WHEREAS, the Board of County Commissioners recognizes that certain applicants and application types should be eligible for a reduction in the development fees to achieve greater equity between smaller and larger applications and to achieve such goals that benefit the community; and **WHEREAS**, the Board of County Commissioners may delegate authority to the Planning Director (Community Development Director) to reduce fees for certain development application types to achieve County goals; and

WHEREAS, in 2022, Larimer County approved a resolution allowing for fee reductions for Planning and Engineering Development Review fees for certain application types that achieve community benefits.

NOW THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS OF LARIMER COUNTY, COLORADO, that:

1. The Planning Director is hereby authorized to reduce development fees as published on the Fee Schedule by twenty-five percent (25%) for certain application types as outlined in this resolution.
2. Planning process application types that are eligible for reduced fees include:

- a. Affordable housing projects, as defined by the Larimer County Affordable Housing Policy;
 - b. Accessory Living Areas that an owner is building to make available for long-term housing, as attested through an Affidavit;
 - c. Childcare facilities;
 - d. Small businesses registered in Larimer County with ten (10) or fewer employees;
 - e. Accessory uses on agricultural properties;
 - f. Subdivisions with fewer than three (3) lots;
 - g. Minor modifications or site upgrades to achieve Comprehensive Plan or Climate and Sustainability Plan goals. These may include but are not limited to installation of lighting to achieve dark sky lighting goals, water efficiency landscaping improvements, renewable energy infrastructure installations on a commercial site, local food related agricultural projects, or other community benefits as described in adopted Larimer County plans or policies; and
 - h. At the discretion of the Director or by the Director in consultation with the Board of County Commissioners, other projects that may achieve Comprehensive Plan, Climate and Sustainability Plan goals, or other Larimer County Strategic Plan objectives.
3. Applicant must request the fee reduction at the time of application with a planner.
4. This resolution is effective as of January 2, 2024 and shall remain in effect, at the discretion of the Board of County Commissioners, through December 31, 2027, subject to renewal at that time.

Passed and adopted this 19th day of December, 2023, in Larimer County, Colorado.



BOARD OF COMMISSIONERS OF
LARIMER COUNTY, COLORADO

Jody Shaddock-McNally
Chair

ATTEST:

Jessie Monty
Deputy County Clerk

APPROVED AS TO FORM:

Frank AB
County Attorney